



Office of Judicial Records – Civil
First Judicial District of Pennsylvania

SERVICE OF ORIGINAL PROCESS COVER SHEET

Service of Original Process is the procedure of a party that files a new case notifying the opposing parties (defendants, respondents, appellees, etc.) that are listed in the case. The opposing parties need to be made aware that a case has been filed against them, and they have the right to respond. Personal service is handing a copy of the filing to the opposing parties directly. **(Pa.R.C.P. 400.1)** The filing that started the case must be served by personal service.

Who can personally serve?

- Sheriff's Office
100 S. Board Street, Suite 5
Philadelphia, PA 19110
- A process server company located in Philadelphia. You will need to find a company on your own.
- A "competent adult" an individual eighteen years of age or older who is neither a party to the action nor an employee or a relative of a party. **(Pa.R.C.P. 76)**

Proof of Service and Non-Service

- Service completed successfully **(complete numbers 1-4)**:
 - After serving the original process, the **person who served the documents** must complete the **Return/Affidavit of Service of Original Process** attached, indicating that the service was properly completed. The server must fill out the **Service Completed Successfully** section on the affidavit. The completed Return/Affidavit of Service of Original Process must be filed with the Office of Judicial Records.
 - The Sheriff's Office and process server companies may file the affidavit of service if the service is completed by them.
 - If a "competent adult" serves on your behalf that person must complete the attached **Return/Affidavit of Service of Original Process**.
- Problems with completing service **(complete numbers 1 and 5)**:
 - If service cannot be completed under the applicable rule, the **person who attempted to serve the filing** must complete the **Return/Affidavit of Service of Original Process** indicating that the service was not completed and lists the reasons why service could not be completed. The server must fill out the **Attempted Service but Unsuccessful** section.

Instructions for completing the forms:

- Print clearly.
- The person that served/attempted to serve the filing must complete the form.
- All blanks that apply to the selection that was selected (**Service Completed Successfully** or **Attempted Service but Unsuccessful**) must be filled in.
- The person that served/attempted to serve the filing must read the statement and sign the document.
- The form must be notarized.



RULES FOR SERVICE OF ORIGINAL PROCESS

Pa.R.C.P. 400.1

In an action commenced in the First Judicial District, original process may be served:

1. within the county by the sheriff or a competent adult; or
2. in any other county by deputized service as provided by [Pa.R.C.P. 400\(d\)](#) or by a competent adult forwarding the process to the sheriff of the county where service may be made.

Note: See Pa.R.C.P. 76 for the definition of “competent adult.”

Pa.R.C.P. 76

Definitions

Competent adult is an individual eighteen years of age or older who is neither a party to the action nor an employee or a relative of a party.

Pa.R.C.P. 402

Manner of Service

Original process may be served

1. by handing a copy to the defendant; or
2. by handing a copy
 - i. at the residence of the defendant to an adult member of the family with whom he resides; but if no adult member of the family is found, then to an adult person in charge of such residence; or
 - ii. at the residence of the defendant to the clerk or manager of the hotel, inn, apartment house, boarding house or other place of lodging at which he resides; or
 - iii. at any office or usual place of business of the defendant to his agent or to the person for the time being in charge thereof.

Pa.R.C.P. 405

Return of Service

- a) When service of original process has been made the sheriff or other person making service shall make a return of service forthwith.
- b) The return of service shall set forth the date, time, place and manner of service, the identity of the person served and any other facts necessary for the court to determine whether proper service has been made.
- c) A return of service by a person other than the sheriff shall be by affidavit.
- d) The return of service or of no service shall be filed with the prothonotary (*i.e. Office of Judicial Records*).



**IN THE COURT OF COMMON PLEAS PHILADELPHIA COUNTY
FIRST JUDICIAL DISTRICT OF PENNSYLVANIA**

Plaintiff(s) Vs. Defendant(s)	Case No. _____
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1. Service Information:

Name of party being served: _____

Name of document served (example complaint/writ of summons/municipal court appeal): _____

2. Service completed successfully (complete this section if service was successful on the party listed above):

Service completed on _____ at _____ AM/PM _____
(date) (time) (address where the document was served)

3. Manner of service (select one of the following):

_____ Handed a copy to named party in section 1.

_____ Left a copy with a competent household member of residence. **(Provide name & relationship of household member on right)**

_____ Left a copy with a person authorized to accept service at the company/business, ex. Managing Agent, Registered Agent, etc. **(Provide name & official title on right)**

Name of person who received the documents & relationship/title:

4. Description of person that received service for party listed above (must be completed):

Age: ____ Gender: ____ Race: ____ Height: ____ Weight: ____ Hair Color: ____

5. Attempted service but unsuccessful (complete this section only if service was unsuccessful):

Service attempted on _____ at _____ AM/PM
(date) (time)
at _____
(address for attempted service)

Explain the reason why service was unsuccessful:

Notary Public Information

Sworn to and Affirmed:

This ____ day _____ 20 ____

(Notary Public Signature and Seal)

Server Information: I am not a party to this action and not related to the parties in this action. I am over 18 years of age. I verify that the statements in this Return of Service/Affidavit of Service are true and correct. I understand that this unsworn document contains statements that are made subject to the penalties of 18 P.C.S. §4904 relating to unsworn falsification to the authorities.

Print Name: _____

Signature: _____